

BREYER, J., dissenting

thorize damages remedies. 403 U. S., at 395–396. At the same time, *Bivens*, *Davis*, and *Carlson* treat the courts’ power to derive a damages remedy from a constitutional provision not as included within a power to find a statute-based damages remedy but as flowing from those statutory cases *a fortiori*.

As the majority opinion points out, this Court in more recent years has indicated that “*expanding* the *Bivens* remedy is *now* a ‘disfavored’ judicial activity.” *Ante*, at 135 (quoting *Iqbal*, 556 U. S., at 675; emphasis added). Thus, it has held that the remedy is not available in the context of suits against *military* officers, see *Chappell v. Wallace*, 462 U. S. 296, 298–300 (1983); *United States v. Stanley*, 483 U. S. 669, 683–684 (1987); in the context of suits against *privately* operated prisons and their employees, see *Minnecci v. Pollard*, 565 U. S. 118, 120 (2012); *Malesko*, 534 U. S., at 70–73; in the context of suits seeking to vindicate procedural, rather than substantive, constitutional protections, see *Schweiker v. Chilicky*, 487 U. S. 412, 423 (1988); and in the context of suits seeking to vindicate two quite different forms of important substantive protection, one involving free speech, see *Bush v. Lucas*, 462 U. S. 367, 368 (1983), and the other involving protection of land rights, see *Wilkie v. Robbins*, 551 U. S. 537, 551 (2007). Each of these cases involved a context that differed from that of *Bivens*, *Davis*, and *Carlson* with respect to the kind of defendant, the basic nature of the right, or the kind of harm suffered. That is to say, as we have explicitly stated, these cases were “*fundamentally different* from anything recognized in *Bivens* or subsequent cases.” *Malesko*, *supra*, at 70 (emphasis added). In each of them, the plaintiffs were asking the Court to “‘authoriz[e] a *new kind* of federal litigation.’” *Wilkie*, *supra*, at 550 (emphasis added).

Thus the Court, as the majority opinion says, repeatedly wrote that it was not “*expanding*” the scope of the *Bivens* remedy. *Ante*, at 135. But the Court nowhere suggested